

Number 11 *of* 2014

CRIMINAL JUSTICE (FORENSIC EVIDENCE AND DNA DATABASE SYSTEM) ACT 2014

REVISED

Updated to 30 July 2021

This Revised Act is an administrative consolidation of the *Criminal Justice (Forensic Evidence and DNA Database System) Act 2014*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Climate Action and Low Carbon Development (Amendment) Act 2021* (32/2021), enacted 23 July 2021, and all statutory instruments up to and including the *Parole Act 2019 (Commencement) Order 2021* (S.I. No. 405 of 2021), made 29 July 2021, were considered in the preparation of this Revised Act.

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An Act to amend the law to authorise the taking of bodily samples from persons suspected of certain criminal offences for forensic testing; to provide for the taking of certain bodily samples from persons who volunteer to have such samples taken from them for the purpose of the investigation of offences or incidents that may have involved the commission of offences; to provide for the establishment and operation by Forensic Science Ireland of the Department of Justice and Equality of a DNA Database System; to provide for the taking of certain bodily samples from persons suspected or convicted of certain criminal offences for the purpose of generating DNA profiles in respect of those persons to be entered in the investigation division of the DNA Database System; to provide for the taking of certain bodily samples from certain persons for elimination purposes and, where appropriate, the entry of their DNA profiles in the DNA Database System; to provide for the taking of bodily samples from persons, or samples from things, for the purpose of generating DNA profiles in respect of those persons or missing persons to be entered in the identification division of the DNA Database System; to provide for the purposes of that System; to provide, in certain circumstances, for the destruction of samples taken under this Act and the destruction, or removal from the DNA Database System, of any DNA profiles generated from those samples; to repeal the Criminal Justice (Forensic Evidence) Act 1990; to give effect to Council Decision 2008/615/JHA of 23 June 2008[1] and Council Decision 2008/616/JHA of 23 June 2008[2], the Agreement between the European Union and Iceland and Norway on the application of those two Council Decisions[3] and an agreement between the State and another state insofar as those Council Decisions or agreements concern cooperation in relation to automated searching for or automated comparison of DNA data or automated searching for dactyloscopic data, as the case may be, and the exchange of such data and the reference data relating to them, by or between authorities which are responsible for the prevention, detection and investigation of criminal offences in the State and those other states or that other state, as the case may be; for that purpose to make provision for data protection and, in that regard, to amend the Data Protection Act 1988; to amend the Criminal Justice (Mutual Assistance) Act 2008; to amend the International Criminal Court Act 2006; to give effect to Council Framework Decision 2009/905/JHA of 30 November 2009 on Accreditation of forensic service providers carrying out laboratory activities; to amend the criminal law relating to the taking of fingerprints and palm prints from certain persons; to amend the Criminal Justice Act 1984 and other enactments to provide for the destruction of fingerprints, palm prints and photographs taken from or of certain persons in certain circumstances; and to provide for related matters. [22 *nd June*, 2014]

Be it enacted by the Oireachtas as follows:

[1]O.J. No. L210, 6.8.2008, p.1.

[2]O.J. No. L210, 6.8.2008, p.12.

[3]O.J. No. L353, 31.12.2009, p.3.

PART 1

Preliminary and General

Short title and commencement

1. (1) This Act may be cited as the Criminal Justice (Forensic Evidence and DNA Database System) Act 2014.

(2) This Act (other than *section 172*) shall come into operation on such day or days as the Minister may by order or orders appoint either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Interpretation

2. (1) In this Act—

"Act of 1939" means Offences Against the State Act 1939;

"Act of 1984" means Criminal Justice Act 1984;

"Act of 1990" means Criminal Justice (Forensic Evidence) Act 1990;

"Act of 1996" means Criminal Justice (Drug Trafficking) Act 1996;

"Act of 2001" means Children Act 2001;

"Act of 2005" means Garda Síochána Act 2005;

"Act of 2006" means International Criminal Court Act 2006;

"Act of 2007" means Criminal Justice Act 2007;

"Act of 2008" means Criminal Justice (Mutual Assistance) Act 2008;

"analysis", in relation to a sample, includes comparison and matching;

"appropriate consent" has the meaning assigned to it by *section 15*;

"authorised member of the staff", in relation to a children detention school, shall be construed in accordance with *section 151*;

"authorised person" shall be construed in accordance with *section 150*;

"body", in relation to a deceased human person (including a foetus or stillborn child), means the body or a part of the body of the person and includes the decomposed or cremated remains of the person;

"child" means a person who has not attained the age of 18 years and, for the purposes of *sections 32* and *38*, includes a person who has attained the age of 18 years who is detained in a children detention school in accordance with section 155 of the Act of 2001;

"child offender" shall be construed in accordance with *section 32(1)*;

"children detention school" has the meaning it has in section 3(1) of the Act of 2001;

"code of practice" means a code of practice that is approved by the Minister under *section 157* ;

"Commissioner" means the Commissioner of the Garda Síochána;

"Committee" means the DNA Database System Oversight Committee established by *section 71* ;

"crime scene" shall be construed in accordance with *section 61(2)*;

(ii) to prevent them from being lost, damaged or otherwise being made imperfect,

or both.",

(b) in subsection (3), by the substitution of "Where it is intended to exercise the power conferred by subsection (1), one of the members of the Garda Síochána concerned shall inform the person" for "Where a member of the Garda Síochána intends to exercise a power conferred by subsection (1), he or she shall inform the person",

(c) in subsection (4), by the substitution of "a member of the Garda Síochána not below the rank of inspector and that member shall determine the number of members of the Garda Síochána that is reasonably necessary for the purposes of subsection (1) " for "a member of the Garda Síochána not below the rank of inspector", and

(d) in subsection (5), by the substitution of "recorded by electronic or similar means" for "video-recorded".

Destruction of fingerprints, palm prints and photographs

103. The Act of 1984 is amended by the substitution of the following sections for section 8:

" **Destruction of fingerprints, palm prints and photographs**

8. (1) A fingerprint, palm print or photograph of a person taken in pursuance of the powers conferred by section 6 or 6A shall, if not previously destroyed, be destroyed in accordance with this section and sections 8A to 8I.

(2) Subject to section 8A, a fingerprint, palm print or photograph of a person referred to in subsection (1) shall, if not previously destroyed, be destroyed in any of the following circumstances not later than the expiration of the period of 3 months from the date on which such circumstances first apply to the person:

(a) where proceedings for an offence to which section 4 applies—

(i) are not instituted against the person within the period of 12 months from the date of the taking of the fingerprint, palm print or photograph concerned, and the failure to institute such proceedings within that period is not due to the fact that he or she has absconded or cannot be found, or

(ii) have been instituted and—

(I) the person is acquitted of the offence,

(II) the charge against the person in respect of the offence is dismissed under section 4E of the Criminal Procedure Act 1967, or

(III) the proceedings for the offence are discontinued;

(b) the person is the subject of an order under section 1(1) of the Probation of Offenders Act 1907 in respect of the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken and he or she has not been convicted of an offence to which section 4 applies during the period of 3 years from the making of the order under that Act;

(c) subject to subsection (3), the person is the subject of an order under section 1(2) of the Probation of Offenders Act 1907 in respect of the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken and he or she has not been convicted

of an offence to which section 4 applies during the period of 3 years from the making of the order under that Act;

(d) the person's conviction for the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken is quashed;

(e) the person's conviction for the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken is declared to be a miscarriage of justice under section 2 of the Criminal Procedure Act 1993.

(3) Subsection (2)(c) shall not apply to an order under section 1(2) of the Probation of Offenders Act 1907 discharged on the appeal of a person against conviction for the offence concerned if on appeal his or her conviction is affirmed.

(4) For the purposes of this section the 'retention period', in relation to a fingerprint, palm print or photograph, means the period from the taking of the fingerprint, palm print or photograph, as the case may be, from a person to the latest date for the destruction of that fingerprint, palm print or photograph under subsection (2).

Extension of retention period under section 8 for fingerprints, palm prints and photographs in certain circumstances

8A. (1) A fingerprint, palm print or photograph taken from or of a person shall not be destroyed under section 8 in any case in which the Commissioner determines that any of the following circumstances apply:

(a) a decision has not been taken whether or not to institute proceedings against the person for the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken;

(b) the investigation of that offence has not been concluded;

(c) the fingerprint, palm print or photograph concerned, and the results of any examination or analysis of it, are likely to be required for the prosecution of an offence connected with the event, incident or circumstances the subject of the offence concerned—

(i) for use as evidence in such proceedings,

(ii) for disclosure to, or use by, a defendant in such proceedings, or

(iii) to support the admissibility of any evidence on which the prosecution may seek to rely in such proceedings;

(d) having regard to the matters specified in subsection (2), the Commissioner believes it is necessary to retain the fingerprint, palm print or photograph concerned in connection with the investigation of the offence concerned taking account of all the circumstances of the case and the reasons why—

(i) proceedings for that offence have not been instituted against the person, or

(ii) if such proceedings have been instituted against the person, they were determined without he or she being convicted of the offence concerned or he or she being the subject of an order under section 1(1) of the Probation of Offenders Act 1907;

(e) there are reasonable grounds for believing that the fingerprint, palm print or photograph of the person may be required in connection with

the investigation of an offence to which section 4 applies, other than the offence in connection with which the fingerprint, palm print or photograph was taken, which the person is suspected of having committed.

(2) The matters referred to in subsection (1)(d) to which the Commissioner shall have regard are the following:

(a) whether the person concerned has any previous conviction for an offence similar in nature or gravity to the offence concerned in connection with which the fingerprint, palm print or photograph concerned was taken from or of him or her;

(b) the nature and seriousness of that offence;

(c) whether any alleged victim, or any intended victim, of that offence was—

(i) a child,

(ii) a vulnerable person, or

(iii) associated with the person,

at the time of the commission, or alleged commission, of that offence; and

(d) any other matter that the Commissioner considers appropriate for the purposes of the determination.

(3) If, in relation to a fingerprint, palm print or photograph taken from or of a person, the Commissioner determines that one of the paragraphs of subsection (1) applies, then, he or she may, during the retention period referred to in section 8, give an authorisation to extend that period by a period of 12 months.

(4) The Commissioner may, while an authorisation under subsection (3) or this subsection, as may be appropriate, is still in force, give an authorisation under this subsection to extend the retention period on a second or further occasion for a period of 12 months commencing on the expiration of the period of 12 months to which the authorisation previously given relates if he or she determines that one of the paragraphs of subsection (1) applies.

(5) Whenever the Commissioner gives an authorisation under subsection (3) or (4), he or she shall, in relation to a fingerprint, palm print or photograph taken from or of a person that is the subject of the authorisation, cause the person to be informed by notice in writing that the authorisation has been given under subsection (3) or (4), as may be appropriate, the date on which that authorisation was given and of the right of appeal under subsection (6).

(6) The person to whom the authorisation concerned relates (in this section called 'the appellant') may, within the period of 3 months from the date of the notice under subsection (5) concerned, appeal to the District Court against that authorisation.

(7) An appeal under subsection (6) shall—

(a) be on notice to the Commissioner, and

(b) be heard otherwise than in public.

(8) If, on an appeal under subsection (6), the District Court—

(a) confirms the authorisation concerned, or